

which must be accompanied by a redacted version of the document for the public file, and an unredacted version identified as filed conditionally under seal. This was not done, and the document became part of the public file. Moreover, it is not clear that a motion to seal could have been granted under the criteria set forth in CRC 2.550. Fee records are routinely made part of the public court file as part of attorney's fee applications. Moreover, summaries of attorney time are often accepted in lieu of actual timesheets.

Counsel has calculated a lodestar fee amount for purposes of this motion. The final amount is \$794,777, based on a total of 1,723.90 hours, at a blended hourly rate \$461. The imputed multiplier is 0.35. Under these circumstances, no adjustment in the requested fee is required. The fee is reasonable and is approved.

Litigation costs are requested in the amount of \$136,371.82. While they are relatively high for this type of case, the drawn-out and heavily litigated nature of this case resulted in higher costs. They are reasonable and are approved.

The Settlement Administrator's costs of \$9,750 are reasonable and are approved.

The requested representative payment of \$12,500 for plaintiff is reviewed under the criteria discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Ms. Acosta attests to her time spent on this matter, which she estimates at 51 hours. She accepted some risk that her participation would make it harder for her to secure other work. She also signed a general release, which is broader than that of the class as a whole, although she does not identify any other claims of significant value. All things considered, the requested payment of \$12,500 is reasonable and is approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants both the motion for final approval and the motion for attorney's fees.

Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. They are further directed to prepare a judgment reflecting the terms of the settlement. The judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. The date for the compliance hearing shall be set in consultation with the clerk for Department 39, but shall be held in Department 16. As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

10. 9:00 AM CASE NUMBER: MSC21-01298
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:

TENTATIVE RULING:

Hearing required. Counsel to appear (by zoom is sufficient). The Court has received counsel's late-filed declaration and invites counsel's recommendations on how best to proceed.

11. 9:00 AM CASE NUMBER: MSC21-01668

CASE NAME: ANGELICA CUIEL VS. PRIVIA HEALTH GROUP, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION AND PAGA CONTINUED FROM 01.29.26 HEARING**

FILED BY:

TENTATIVE RULING:

On January 29, 2026, the Court adopted its tentative ruling approving the settlement (with a reduced amount of attorney's fees), subject to confirmation by a declaration of the settlement administrator indicating whether any objections or requests for exclusion had been received since the January 15, 2026 deadline. A declaration was filed, stating that as of the deadline, no requests for exclusion and no objections are received.

The Court notes that the settlement administrator's declaration refers to deducting \$1,938,000 being deducted from the gross settlement amount. The correct figure to be deducted, based on the Court's ruling, is \$1,530,000. The difference goes to the Net Settlement Amount.

For the reasons stated in the January 29, 2026 ruling, the **motion is granted**. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

12. 9:00 AM CASE NUMBER: MSC21-02363

CASE NAME: HALL VS. AMERICAN AUTOMOBILE ASSOCIATION

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SETTLEMENT AGREEMENT SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiffs Keaton Hall, Michael Myers, Davion Frazier and Kelly McDaniel move for final approval of their class action and PAGA settlement with defendants American Automobile Association of Northern California, Nevada & Utah and A3 Smart Home LP.

A. Background and Settlement Terms

The original complaint was filed by Hall on November 3, 2021, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Myers filed a PAGA complaint on August 16, 2023. On February 6, 2024, Myers amended his complaint to include class action allegations. On October 4, 2023, Frazier filed a similar class action complaint. On December 15, 2023, he filed a PAGA action. On May 19, 2025, the parties stipulated for leave to amend Hall's complaint, and it is now the operative complaint, including all of the claims at issue.

The settlement would create a gross settlement fund of \$5,000,000. The class representative